

CHAPTER 25.

An Act to enable effect to be given to an International Convention for the Suppression of Counterfeiting Currency, signed on behalf of His Majesty at Geneva on the twentieth day of April, nineteen hundred and twenty-nine, to apply to foreign coin certain enactments relating to British coin, and to assimilate the penalties for importing and exporting counterfeit coin.

[10th July 1935.]

WHEREAS a Convention for the Suppression of Counterfeiting Currency, was signed on behalf of His Majesty at Geneva on the twentieth day of April, nineteen hundred and twenty-nine :

And whereas it is expedient to give effect to the said Convention and to apply to foreign coin certain enactments relating to British coin, and to assimilate the penalties for importing and exporting counterfeit coin :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Currency notes issued by or on behalf of the Government of any country outside the United Kingdom shall be deemed to be bank notes within the meaning of the Forgery Act, 1913, and this Act.

Forgery of
currency
notes issued
abroad.
3 & 4 Geo.5.
c. 27.

(2) In this section the expression “currency notes” includes any notes (by whatever name called) which are legal tender in the country in which they are issued.

2. Where any forged bank note, or any machinery, implement, utensil or material used or intended to be used for the forgery of a bank note, is lawfully seized under a warrant granted in pursuance of subsection (1) of section sixteen of the Forgery Act, 1913, or otherwise, the bank note, machinery, implement, utensil or material, as the case may be, shall, notwithstanding anything in

Disposal of
forged bank
notes and
plant used
for forging
bank notes.

subsection (2) of that section, be delivered up to the Secretary of State, or to any person authorised by him for the purpose, by order of the court before which the offender is tried or, if there is no trial, by order of a justice of the peace.

Application
of enact-
ments to
foreign
coin and
assimilation
of penalties
for import-
ing and
exporting
counterfeit
coin.

3.—(1) Sections eighteen to twenty-three of the Coinage Offences Act, 1861, (which contain provisions as to foreign coin differing from the corresponding provisions as to His Majesty's coin) are hereby repealed, and the provisions of that Act shall apply in relation to foreign coin as they apply in relation to His Majesty's coin, and accordingly the provisions of that Act specified in the first column of Part I of the Schedule to this Act shall be amended in the manner shown in the second column of that Part of that Schedule.

24 & 25 Vict.
c. 99.

(2) There shall be substituted for the penalties provided in section seven and section eight of the Coinage Offences Act, 1861, (which respectively relate to the importation and exportation of counterfeit coin) a penalty of penal servitude for any term not exceeding fourteen years.

46 & 47 Vict.
c. 45.

(3) The Counterfeit Medal Act, 1883, shall apply in relation to foreign coin as it applies in relation to His Majesty's coin; and accordingly the provisions of that Act set out in the first column of Part II of the Schedule to this Act shall be amended in the manner shown in the second column of that Part of that Schedule.

52 & 53 Vict.
c. 42.

(4) Section two of the Revenue Act, 1889, (which prohibits the importation of imitation coin) shall apply to imitation foreign coin as it applies to imitation British coin; and accordingly the provisions of that section set out in the first column of Part III of the Schedule to this Act shall be amended in the manner shown in the second column of that Part of that Schedule.

Extradition
for attempts
to commit
offences in
connection
with
counterfeit
currency.

33 & 34 Vict.
c. 52.

4. The Extradition Act, 1870, shall be construed as if there were included in the list of crimes in the First Schedule to that Act the following crimes, namely:—

(a) attempts to forge bank notes, attempts to utter forged bank notes, and attempts to commit, in relation to bank notes, any indictable offence under the Forgery Act, 1913, or any Act

amending or substituted for that Act, which was not included in the said First Schedule as originally enacted; and

- (b) attempts to counterfeit or alter money, attempts to utter counterfeit or altered money, and attempts to commit any indictable offence under the Coinage Offences Act, 1861, or any Act amending or substituted for that Act, which was not included in the said First Schedule as originally enacted.

5. In the application of this Act to Scotland the following modifications shall be made:— Application to Scotland.

- (a) The following provision shall be substituted for subsection (1) of section one of this Act:—

“(1) Currency notes issued by or on behalf of the Government of any country outside the United Kingdom shall be deemed to be bank notes within the meaning of this Act, and the provisions of sections two, six and seven of the Bank Notes (Forgery) Act, 1805, shall apply to any such currency notes in like manner as they apply to bank notes of the Bank of England with the substitution for any reference to the Governor and Company of the Bank of England of a reference to the person or body by whom such currency notes are issued.” 45 Geo. 3.
c. 89.

- (b) The following section shall be substituted for section two of this Act:—

“2. Where any court in pursuance of section forty-four of the Summary Jurisdiction (Scotland) Act, 1908, or of that section as applied to procedure under indictment by section seventy-seven of the said Act, orders the forfeiture of any bank note or any instrument or other article used, or calculated to be used, for the forgery of a bank note, such bank note, instrument or article shall, notwithstanding anything in the said section, be delivered up to the Secretary of State or to any person authorised by him for the purpose.” 8 Edw. 7.
c. 65.

Short title,
citation,
extent and
commence-
ment.

6.—(1) This Act may be cited as the Counterfeit Currency (Convention) Act, 1935.

(2) The provisions of this Act which amend the Forgery Act, 1913, may be cited together with that Act as the Forgery Acts, 1913 and 1935.

(3) The provisions of this Act which amend the Coinage Offences Act, 1861, may be cited together with that Act as the Coinage Offences Acts, 1861 and 1935.

(4) The provisions of this Act which amend the Extradition Act, 1870, may be cited together with the Extradition Acts, 1870 to 1932, as the Extradition Acts, 1870 to 1935.

(5) It is hereby declared that this Act extends to Northern Ireland, but nothing in this subsection shall be taken to affect the operation of section seventeen of the Extradition Act, 1870.

(6) This Act shall come into operation on the first day of January, nineteen hundred and thirty-six.

Section 3.

SCHEDULE.

AMENDMENTS OF ENACTMENTS CONSEQUENTIAL ON APPLICATION THEREOF TO FOREIGN COIN.

PART I.

AMENDMENTS OF THE COINAGE OFFENCES ACT, 1861. (24 & 25 Vict. c. 99.)

Provision of Act.	Amendments.
Section one	The words "the Queen's" and "of the Queen's" wherever they occur shall be repealed; after the word "otherwise" and after the word "Dominions" in the second place where each of those words occurs, there shall be inserted the words "or lawfully current in any foreign country"; for the words "any copper coin and any coin of bronze or mixed

Provision of Act.	Amendments.
	“ metal ” there shall be substituted the words “ any coin of any metal or mixed “ metal (not being a gold or silver “ coin) ” ; for the words “ and whether “ made of gold; silver, copper, bronze “ or mixed metal ” there shall be substituted the words “ or lawfully current in any foreign country ” ;
Sections two and three.	The words “ of the Queen’s ” wherever they occur shall be repealed.
Section four - -	The words “ of the Queen’s ” and “ the Queen’s ” shall be repealed.
Sections five, six, seven, eight, nine, ten, eleven, thirteen, fourteen, fifteen, and sixteen.	The words “ of the Queen’s ” wherever they occur shall be repealed.
Section twenty-four -	The words “ of the Queen’s ” and the words “ or of any coin of any foreign prince, state or country ” shall be repealed.
Section twenty-six -	The words “ the Queen’s ” shall be repealed.
Section twenty-seven	The following words shall be repealed, that is to say—the words “ of the Queen’s ” in both places where they occur; the words “ or any coin of any foreign prince, state or country ”; the words “ the Queen’s ” and the words “ or any such foreign or other coin as in this Act before mentioned.”

PART II.

AMENDMENTS OF THE COUNTERFEIT MEDAL ACT, 1883.
(46 & 47 Vict. c. 45.)

Section two - -	The words “ of the Queen’s ” wherever they occur shall be repealed.
Section three - -	The words “ the Queen’s ” shall be repealed and there shall be inserted at the end of the section the words “ or “ lawfully current in any foreign “ country.”

PART III.

AMENDMENTS OF SECTION TWO OF THE
REVENUE ACT, 1889.
(52 & 53 Vict. c. 42.)

Provision of Act.	Amendments.
Subsection (3) -	- The words "or foreign" shall be inserted after the word "British" wherever that word occurs.
Subsection (4) -	- The following words shall be inserted at the end of the subsection "and the expression 'foreign coin' means any coin lawfully current in any foreign country, and the expression 'foreign money' means money expressed in the terms of any foreign coin."

CHAPTER 26.

An Act to repeal the proviso to section nineteen of the Defence Act, 1842. [10th July 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Repeal of
proviso to
s. 19 of
5 & 6 Vict.
c. 94.

1.—(1) The proviso to section nineteen of the Defence Act, 1842 (which prohibits the use for barracks of any lands, buildings or hereditaments taken compulsorily) is hereby repealed:

Provided that this repeal shall not affect any lands, buildings or hereditaments taken compulsorily before the fourth day of June, nineteen hundred and thirty-five.

(2) Any Act or Order in Council applying the said section in relation to the Admiralty or the President of